

No. 4.

A MEASURE passed by the National Assembly
of the Church of England.

To make further provision as to the apportionment of the income of the Dean and Chapter of Westminster.
[10th May 1929.]

1.—(1) Provision may from time to time be made by means of a scheme or schemes under this Measure for re-apportioning the annual income of the Dean and Chapter of Westminster between—

Power to re-apportion income of Dean and Chapter of Westminster.

- (a) the fabric fund;
- (b) the stipends of the dean and canons; and
- (c) the maintenance of the services of Westminster Abbey and other expenses of the Dean and Chapter of Westminster.

(2) A scheme under this Measure may repeal or amend the provisions of the Scheme of 1888 or of any previous scheme under this Measure.

(3) The first scheme under this Measure may provide that the re-apportionment of income effected thereby shall have effect as from the first day of January, nineteen hundred and twenty-nine, or from such subsequent date as may be laid down by such scheme.

2. A scheme under this Measure may provide that notwithstanding the provisions of section seven of the Westminster Abbey Act, 1888, any rates in respect of the official residences of the dean and canons of Westminster may be paid out of the fabric fund.

Rates on dean's and canons' houses.
51 & 52 Vict.
c. 11.

3. The canonry in Westminster Abbey suspended in pursuance of the provisions of section five of the Westminster Abbey Act, 1888, shall by virtue of this Measure, notwithstanding the repeal of the said section of the said Act by this Measure, remain suspended as if it had been suspended under section eight of the Ecclesiastical Commissioners Act, 1840, and the number of canons of Westminster Abbey which by virtue of section two of the last-mentioned Act and of the Schedule thereto was fixed at six shall henceforth be five.

Suspension of canonry continued.

3 & 4 Vict.
c. 113.

Schemes.

4.—(1) Every scheme under this Measure shall be prepared by the Ecclesiastical Commissioners after previous consultation with the Dean and Chapter of Westminster, and shall be submitted to the Visitor of the Abbey for approval, and if the Visitor shall approve the scheme the Ecclesiastical Commissioners shall certify the scheme as so approved to His Majesty in Council, whereupon it shall be lawful for His Majesty in Council to make and issue any Order or Orders for confirming the scheme.

(2) Notice of every scheme under this Measure confirmed by Order in Council shall be published in the London Gazette, and upon the publication of such notice such scheme shall become effectual in law as if contained in this Measure.

Interpretation.

5. In this Measure—

The expressions “Westminster Abbey,” “Dean and Chapter of Westminster,” “dean of Westminster,” and “canons of Westminster,” mean respectively the Collegiate Church of Saint Peter Westminster, the Dean and Chapter of, the dean of, and the canons of the said Collegiate Church;

The expression “Scheme of 1888” means the scheme made by the Ecclesiastical Commissioners under the Westminster Abbey Act, 1888, and ratified by an Order in Council of Her late Majesty Queen Victoria made and passed on the seventeenth day of November, eighteen hundred and eighty-eight;

The expression “fabric fund” means the fabric fund established by the Scheme of 1888 pursuant to the Westminster Abbey Act, 1888;

The expression “annual income of the Dean and Chapter of Westminster” means only the money payment payable under the Scheme of 1888, together with any income arising from the investment of any accumulations thereof and any income derived by the Dean and Chapter of Westminster from any building which is not for the time being occupied as an official house.

6. This Measure may be cited as the “ Westminster Short title. Abbey Measure, 1929.”

7. The enactments set out in the Schedule to this Repeal. Measure are hereby repealed to the extent mentioned in the third column of that Schedule as from the date upon which any scheme under this Measure shall become effectual in law.

THE SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
3 & 4 Vict., c. 113.	Ecclesiastical Commissioners Act, 1840.	Section 66, so far as it provides for a limitation of the annual incomes of the dean of Westminster and the canons of Westminster respectively.
51 & 52 Vict., c. 11.	Westminster Abbey Act, 1888.	Subsection (6) of section 3. Section 5.